

BEFORE THE IOWA BOARD OF BEHAVIORAL SCIENCE

RE:
Mental Health Counselor License of

ELIZABETH REQUENA
License No. 079124
Respondent

CASE NO. 19-0009

**COMBINED STATEMENT OF
CHARGES, SETTLEMENT
AGREEMENT, AND FINAL ORDER**

COME NOW the Iowa Board of Behavioral Science ("Board") and Elizabeth Requena ("Respondent"), 220 6th St SW, Waverly IA 50677, and enter into this Combined Statement of Charges, Settlement Agreement, and Final Order ("Order") pursuant to Iowa Code sections 17A.10 and 272C.3(4), and 645 IAC chapter 12. The Board has jurisdiction over Respondent and the subject matter of this case pursuant to Iowa Code chapters 17A, 147, 154D, and 272C, and 645 IAC chapter 33.

A. STATEMENT OF CHARGES

COUNT I

1. Respondent is charged with violating section A.6.e. of the ACA Code of Ethics (2014) entitled "Nonprofessional Interactions or Relationships" and may be disciplined pursuant to Iowa Code section 147.55(9) and 645 IAC 33.2(1)"b".

B. FACTUAL CIRCUMSTANCES

2. Respondent holds mental health counselor license number 079124, which is currently active through September 30, 2020.

3. Respondent performed an intake for a client who decided not to engage in counseling services.

4. Respondent socialized with the client shortly after the intake session.

C. SETTLEMENT AGREEMENT AND FINAL ORDER

5. The Board has jurisdiction over the parties and the subject matter of these proceedings.

6. Respondent admits the allegations in the Statement of Charges and acknowledges that the allegations, if proven in a contested case hearing, would constitute grounds for the discipline agreed to in this Order.

7. Execution of this Order constitutes the resolution of a contested case. Respondent has a right to hearing before the Board on the charges, but Respondent waives the right to hearing and all attendant rights, including the right to appeal or seek judicial review of the Board's action, by freely and voluntarily entering into this Order. Once entered, this Order shall have the force and effect of a disciplinary order entered following a contested case hearing.

8. Respondent acknowledges that she has the right to be represented by counsel on this matter.

9. Respondent agrees that the State's counsel may present this Order to the Board and may have *ex parte* communications with the Board while presenting it.

10. This Order is subject to approval by a majority of the full Board. If the Board does not approve this Order, it shall be of no force or effect to either party, and shall not be admissible for any purpose in further proceedings in this matter. If the Board approves this Order, it shall be the full and final resolution of this matter.

11. This Order shall be part of Respondent's permanent record and shall be considered by the Board in determining the nature and severity of any disciplinary action to be imposed in the event of any future violations.

12. This Order shall not be binding as to any new complaints received by the Board.

13. Respondent understands the Board is required by federal law to report any adverse action to the National Practitioner Data Bank.

14. This Order, when fully executed, is a public record and is available for inspection and copying in accordance with the requirements of Iowa Code chapters 22 and 272C.

15. The Board's approval of this Order shall constitute a **FINAL ORDER** of the Board.

IT IS THEREFORE ORDERED:

16. Respondent's license shall be placed on **PROBATION** for a minimum period of eighteen (18) months, subject to the following terms and conditions:

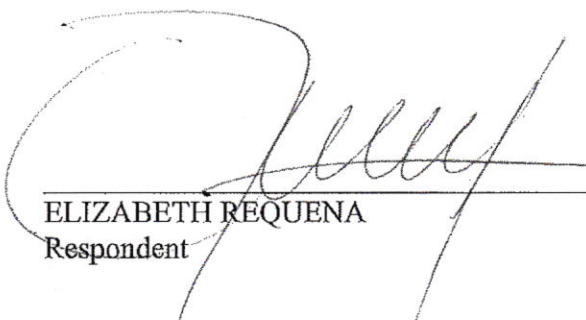
- a. Respondent shall complete eighteen (18) months of practice monitoring before being released from probation. Prior to beginning practice monitoring, Respondent shall submit the name and credentials of a proposed practice monitor and a proposed practice monitoring plan to the Board for approval. The practice monitor must be an Iowa-licensed mental health counselor or marital and family therapist with no disciplinary history, who has training in supervision and who can objectively monitor Respondent's practice. Practice monitoring shall commence upon Board approval of the practice monitor and the practice monitoring plan. Respondent shall meet in a face-to-face setting with the practice monitor on a monthly basis during the probation period to review Respondent's clinical work and any issues related to ethics and boundaries. If Respondent does not perform any clinical work in a particular month, Respondent is not required to meet with her practice monitor that month, and that month shall not count towards the completion of the required two (2) years of practice monitoring. Respondent is responsible for all costs associated with practice monitoring and for

ensuring the quarterly reports are timely submitted by her practice monitor.

- b. Within ninety (90) days, Respondent shall complete six and a half (6.5) hours of in-person continuing education related to ethics and professional boundaries. These continuing education hours are in addition to the hours required for license renewal and cannot be used to satisfy the continuing education required for any license renewal. Respondent shall provide copies of all certificates of completion to the Board as proof of successful completion of this requirement. Respondent is responsible for all costs associated with obtaining the required continuing education.
- c. During the probationary period, Respondent shall notify all employers and prospective employers for any position that requires licensure as a mental health counselor (no later than at the time of an employment interview) of this Order.
- d. Respondent shall not serve as a supervisor for purposes of the supervised clinical experience required for licensure.
- e. Respondent shall appear before the Board upon request for the purpose of reviewing her performance during the probationary period. Respondent shall be given reasonable notice of the date, time, and place for such appearances.
- f. Respondent may request early release from probation after one (1) year. The Board retains the discretion to determine whether early release is appropriate, but shall consider Respondent's compliance with the probationary period when making such a decision.
- g. Respondent shall provide written notification to the Board of any change of home address, telephone number, or place of employment within ten (10) days of such a change.
- h. Respondent and Respondent's practice monitor shall each submit quarterly reports to the Board. Each year, the Quarter 1 (January-March) report is due no later than April 5th; the Quarter 2 (April-June) report is due no later than July 5th; the Quarter 3 (July-September) report is due no later than October 5th; and the Quarter 4 (October-December) report is due no later than January 5th.
- i. The notifications and reports required to be submitted to the Board pursuant to this paragraph should be mailed to the Iowa Board of Behavioral Science, Attn: Tony Alden, Bureau of Professional Licensure, Iowa Department of Public Health, Lucas State Office Building—5th Floor, 321 East 12th St., Des Moines, IA 50319, or emailed to Tony.Alden@idph.iowa.gov.

17. Should Respondent violate the terms of this Order, the Board may initiate action to impose licensee discipline as authorized by Iowa Code chapters 147, 154D, and 272C and 645 IAC chapters 13 and 33.

11/20/2019
Date


ELIZABETH REQUENA
Respondent

This Combined Statement of Charges, Settlement Agreement, and Final Order is approved by the Iowa Board of Behavioral Science on December 12, 2019.

Donald Gilbert by Tony Alden, Board Exec.
Chairperson
Iowa Board of Behavioral Science